



U.S. Department
of Transportation

Research and
Special Programs
Administration

FEB 23 1998

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11891
(FIRST REVISION)

EXPIRATION DATE: January 31, 2000

1. GRANTEE: Aldrich Chemical Company, Inc.
Milwaukee, Wisconsin
2. PURPOSE AND LIMITATION: This exemption authorizes the one-time local shipment of certain hazardous materials, not in conformance with the Hazardous Materials Regulations, in connection with the transfer of Aldrich's distribution operation to a new distribution center. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 171 to 180.
5. BASIS: This exemption is based on the application of Aldrich Chemical Company, Inc., dated January 26, 1998 submitted in accordance with 49 CFR 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
As appropriate	3, 4.1, 4.2, 4.3, 5.1, 5.2, 6.1, 8, & 9	As appro- priate	As appro- priate

7. PACKAGING:

- a. Packaging prescribed consists of inner packagings packed in strong outside packagings, or unitized in cages, carts or similar overpacks. Inner packaging must:
 - (1) Be such that there will be no significant chemical or galvanic reaction between the inner packaging and its contents;
 - (2) Be positively closed in such a manner as to remain secure and leakproof under conditions normally incident to transportation, as permitted under the exemption;
 - (3) Be secured within the outer packaging, cage, cart or overpack in such a manner as to prevent their breakage or leakage under the conditions normally incident to transportation, as permitted under the exemption; and
 - (4) When containing liquids:
 - (I) Be filled so that the liquid does not completely fill the inner packaging at a temperature of 55°C, or less; and
 - (ii) Be packed in the strong outside packaging, cage, cart or overpack with closures upright.
- (b) Hazardous materials must not be packed in the same outer packaging, cage, cart or overpack with other hazardous or non-hazardous materials if such materials are capable of reacting dangerously with each other and causing:
 - (1) Combustion or dangerous evolution of heat;
 - (2) Evolution of flammable, poisonous or asphyxiant gases; or
 - (3) Formation of unstable materials.

8. OPERATIONAL CONTROLS:

- (a) Transportation is authorized only from the existing Aldrich distribution facility at 2905 West Hope Avenue, Milwaukee, Wisconsin, to the new Aldrich distribution facility at 6000 N. Teutonia Avenue, Milwaukee, Wisconsin, a total distance of approximately 3 miles, by the most direct route available.
- (b) Hazardous materials must be transported only in closed

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motor vehicles owned and operated by Aldrich Chemical Company, or in vehicles leased by, and under the exclusive control of the Aldrich Chemical Company.

(c) Each vehicle transporting hazardous materials under terms of the exemption will be accompanied by a telephone-equipped company car, which shall remain in visual contact with the accompanied vehicle at all times. The driver of each such car will be instructed as to actions to be taken in the event of an incident involving the vehicle being accompanied.

(d) Both drivers of each vehicle transporting hazardous materials under the terms of the exemption, and of the car accompanying each such vehicle, must possess an itemized listing by proper shipping name (including, when the proper shipping name is listed in § 172.203(k)(3), the technical or chemical name as required by § 172.203(k)) of each hazardous material aboard the vehicle.

(e) At any time that a vehicle is transporting hazardous materials under terms of the exemption, a knowledgeable, and suitably trained and equipped company hazardous materials spill response team will be located at either the origin or destination location, and be:

(1) Accessible by cellular telephone to the driver of the car accompanying any vehicle transporting hazardous materials under the terms of the exemption; and

(2) Available for immediate response to any incident involving a vehicle transporting hazardous materials under the terms of the exemption.

(f) The forbidden materials and package provisions in § 173.21 apply to transport under the terms of the exemption.

(g) Motor vehicles transporting hazardous materials under the terms of this exemption must be placarded with the "DANGEROUS" placard on each side and each end.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: None as a requirement of this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq: